



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00256 / Miller Addition, 5th Filing Zone Change
Date: August 9, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/9/2021
- Public Services Committee 8/17/2021
- Second reading 8/23/2021
- Public Services Committee 9/8/2021
- Third and final reading 9/13/2021

Related Items:

- Miller Addition, 5th Filing Plat (UDC-21-00257)

Planning Commission Recommendation:

The Planning Commission heard this item at their August 2, 2021 meeting and recommended the Governing Body approve this application by a vote of 3-1.

The Planning Commission Staff report is attached and has only been changed to correct a typo (the Staff report originally read "Lots 7-8", but should have read "Lots 7-18" – all other maps and notice associated with the project accurately described the area to be changed).

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO NR-2 NEIGHBORHOOD RESIDENTIAL – MEDIUM DENSITY FOR LAND LOCATED NORTH OF AND ADJACENT TO MILLER LANE, BETWEEN SUNSET DRIVE AND TOWNSEND PLACE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 2, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 7-18, Block 3, Miller Addition is hereby changed to NR-2 Neighborhood Residential - Medium Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

AUGUST 2, 2021

STAFF REPORT

FILE: UDC-21-00256: Miller Addition, 5th Filing Zone Change

REQUEST: A request to rezone approximately 1.6 acres of land from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density

LOCATION: North of Miller Lane, west of Townsend Place

APPLICANT: AVI- Brad Emmons

AGENT: AVI- Brad Emmons

OWNER: Naler Residential Properties LLC

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow cottage lot development.

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 7-18, Block 3, Miller Addition to NR-2 Neighborhood Residential – Medium Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density for 1.6 acres of land. The land was once developed with a mobile home park, currently contains one single-family home, and is anticipated to be developed in the future with a set of duplexes utilizing a cottage lot configuration.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	MR (Medium-density Residential)	Mostly vacant, one single-family home
North	Urban Residential	MUB (Mixed-Use Business Emphasis)	Vacant and Preschool
South	Urban Residential	MR	Apartments, Single-family residential
East	Urban Residential	MR	Single-family residential, duplexes
West	Urban Residential	MR	Single-family residential, duplex

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development and a mix of housing types in neighborhoods (although it is not the intent of the plan to change existing, stable neighborhoods).

The Future Land Use Designation for this property is Urban Residential. According to comprehensive plan the optimal City zones for the future land use designation of Urban Residential are LR, MR, HR, NR-1, NR-2, and NR-3.

Based on the policies and future land use designation of the subject property, NR-2 Neighborhood Residential – Medium Density zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

This property, and most of the surrounding property, is currently zoned MR with the future land use designation of Urban Residential. The MR zone allows a variety of residential development, including apartments with conditional use approval, but the NR-2 zone allows smaller lot sizes and smaller multifamily without conditional use approval. The NR-2 zone also allows cottage lot style development. The Urban Residential future land use designation encourages a variety of housing types and densities. Existing development in the area includes apartment buildings and duplexes. The NR-2 zone is compatible with the surrounding area considering existing zoning and development patterns.

The property adjacent to the north is zoned MUB and only partially developed. The MUB zone allows a variety of residential and commercial uses and is considered a higher-intensity zone than either the current MR zone or the proposed NR-2 zone. The rezoning of this property to NR-2 would not have an undue influence on the property to the north.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current MR zone allows apartments as a conditional use, larger townhomes, duplexes, and all but the smallest single-family home lots. The NR-2 zone allows larger apartments as a conditional use, smaller apartments, townhomes, duplexes, and the smallest style of single-family lots, including Cottage Lots.

While the surrounding area is all zoned MR, there are lots in the neighborhood which are too small to be established under the current regulations. The NR-2 zone would allow smaller lots which are compatible with existing development patterns.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The existing block is larger than anticipated for the urban-style of development anticipated for MUB or NR-2 zoning. However, the subject property is in an area previously developed and limited options are available to create meaningful connections to the street network. No additions to the street network are proposed.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The NR-2 zone is intended for a medium residential density and mix of dwelling types in a compact development pattern (with smaller, walkable blocks).

While any residential development within the City is expected to meet the general residential design standards, the NR-2 zone has additional compact and mixed-density neighborhood design standards found in UDC 6.6.4. The MR zone allows wide driveways, provided they are setback from the side lot line, and allows the front façade to be dominated by the garage. The NR-2 zone requires more discrete access (narrower driveways or alley access) but allows driveways to be built to the side property line. Garages are prohibited from dominating the front façade. Existing development in the area is more reflective of the design standards for the MR zone than the design of the proposed NR-2 zone. A change to NR-2 may necessitate replatting of the subdivision for the best development capabilities.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The existing lots do not meet frontage requirements to have front access, a new alley or access easement would be required to be dedicated. Lots would become less non-conforming from a size and frontage aspect, but more nonconforming from an access standpoint. A rezone almost requires a replat. A replat has been proposed.

While the NR-2 zone would give more flexibility in potential development (or redevelopment) of this parcel should the specific development proposed not be executed; rezoning to NR-2 creates difficulty in developing the existing lots, hence a replat likely being necessary to develop to the maximum extent practical.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-2 zone is appropriate based on the future land use designation for the subject property and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

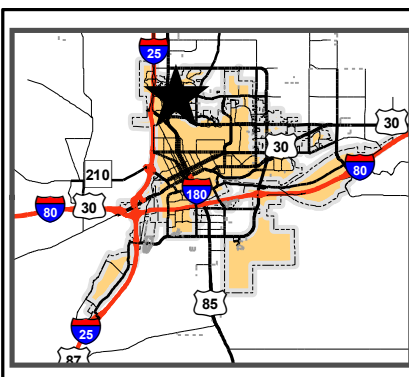
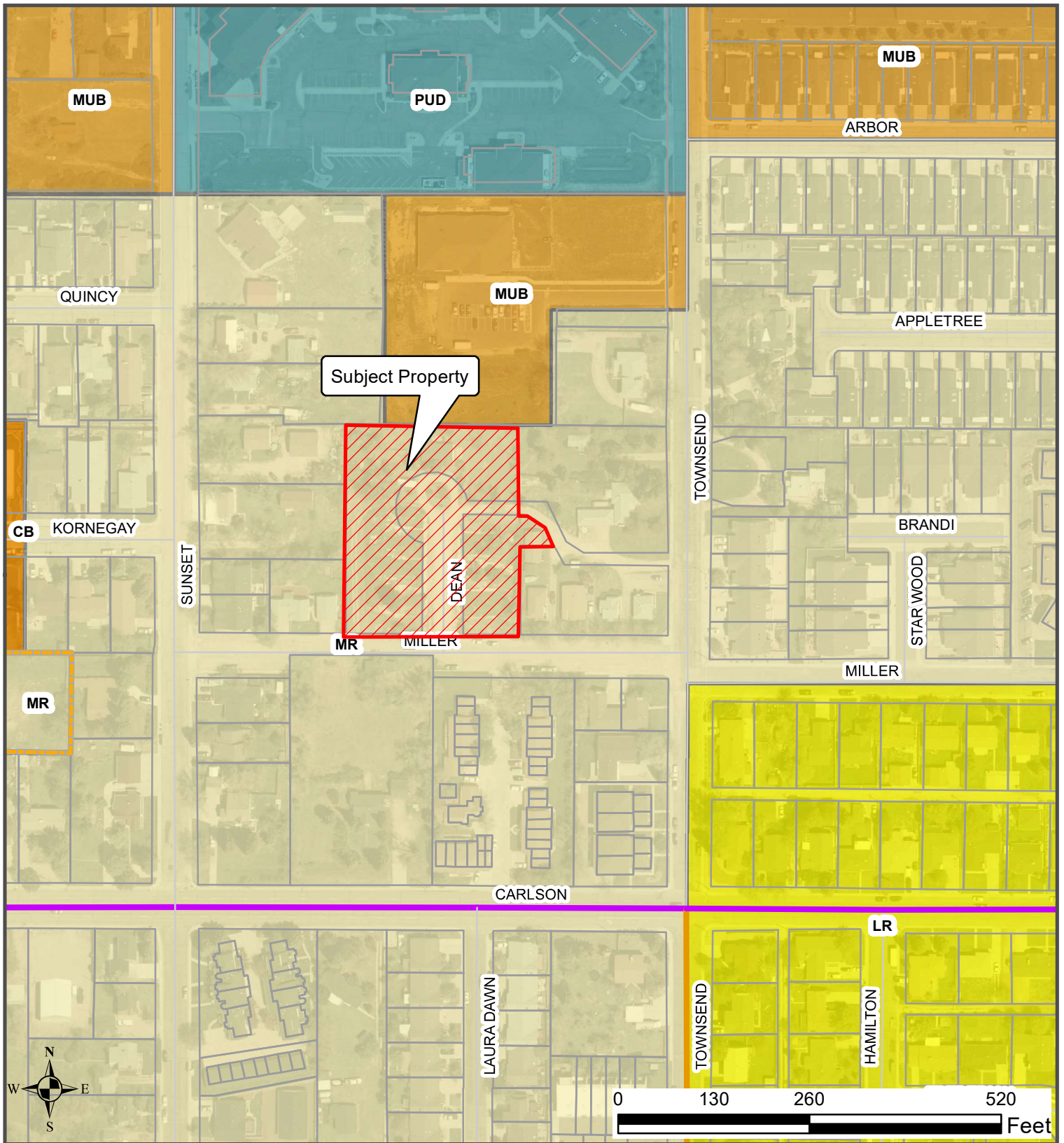
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MR to NR-2.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

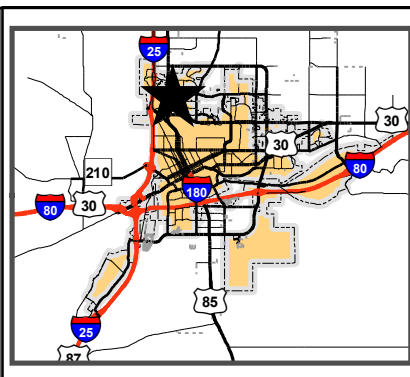
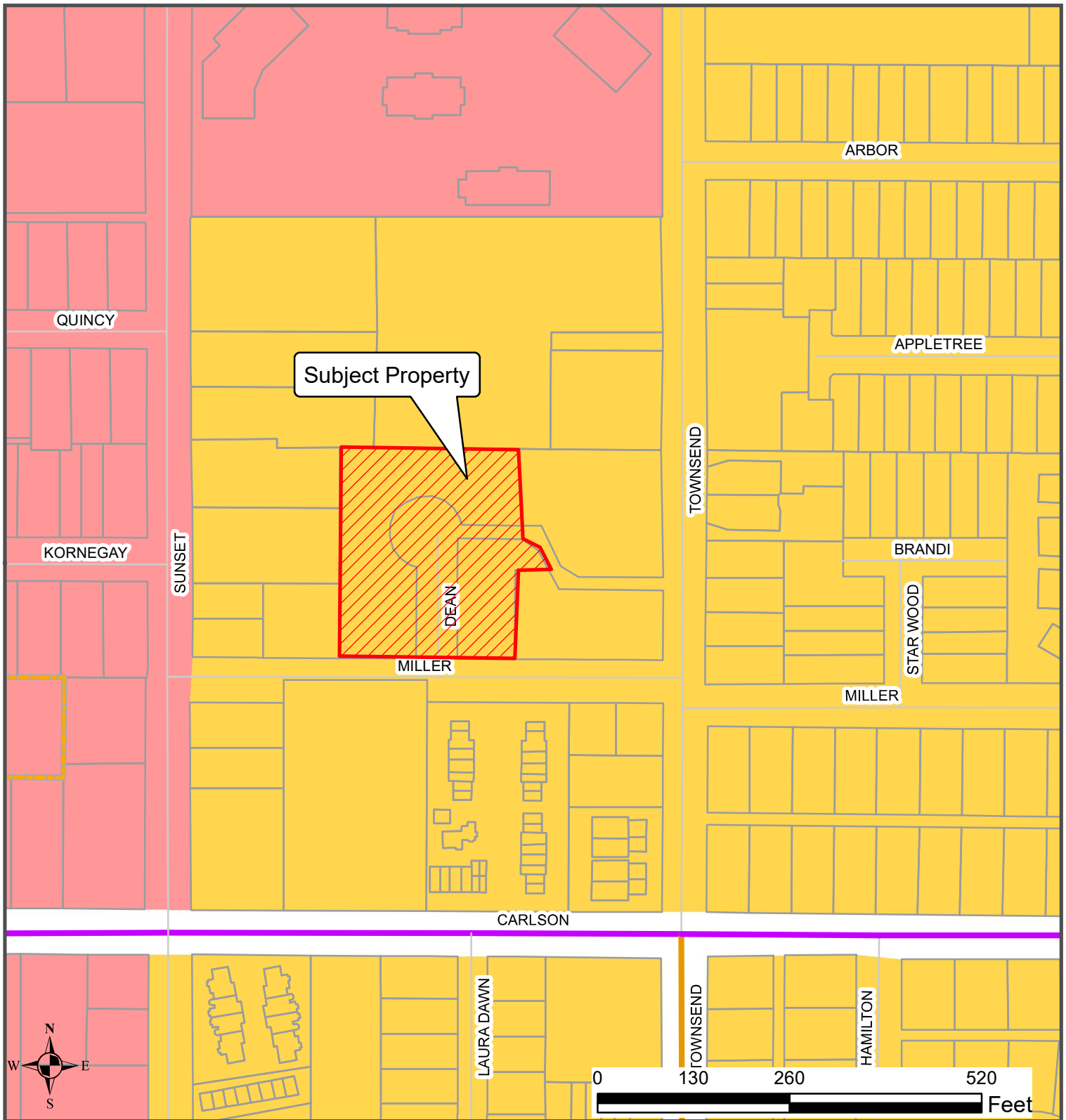


Attachment 1: Zoning Map UDC-21-00256

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-21-00256

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **30 June 2021, 8:17PM**

Receipt number: **18**

Related form version: **9**

NOTE: All links are deactivated - for
internal use only

General Information

Applicant Name: **Miller Lane Cottages LLC**

Applicant Address: **1103 Old Town Lane #101**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **3076376017**

Applicant Email: **emmons@avipc.com**

Representative Name: **AVI- Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Naler Residential Properties**

Owner Address: **PO Box 2872**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82003
Owner Phone:	3074213517
Owner Email:	dnaler@aol.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Miller Lane LOA.pdf
Project Location (Street Address or General Location):	228 Miller Lane
Assessor's Parcel ID number(s)	Portion of R0064961
Total Project Area	Approx 1.6 acres
Existing Zoning	MR - Medium-density Residential
Requested Zoning	NR-2 - Neighborhood Residential - Medium Density

Application-Specific Questions

Written Statement	Replat and rezoning to create a cottage type project with joint open space.
Zoning Map	4524_ZONE_CHANGE.pdf
Notification Letter	miller_neighbor_notification_.docx miller_neighbor_list.xlsx
Supporting Documents / Information	4524_PRELIM PLAT.pdf 4524_PROPOSED LOT LAYOUT.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons

A handwritten signature in black ink, appearing to be 'BE' with a stylized flourish extending from the 'E'.

[Link to signature](#)

Please enter an email address for an email receipt.

emmons@avipc.cm

LARAMIE COUNTY, WYOMING
PREPARED JUNE 2021

PROPOSED ZONING NR-2

